

Wisconsin

GENERAL INFORMATION

1. Wisconsin **does not** maintain a list of eligible surplus lines insurers (see Other Comments section #2).
2. Wisconsin **does not** have a Surplus Lines Association.
3. Wisconsin **does not** have an Export List.
4. Wisconsin **does not** have an industrial insured exemption but has adopted the NRRA exempt commercial purchaser exemption.
5. **Surplus lines tax:** 3%, payment is the joint responsibility of the broker and policyholder.
6. Wisconsin **does** allow domestic surplus lines insurers in the state.

ELIGIBILITY AND FILING REQUIREMENTS (ALIEN INSURERS ONLY)

Wisconsin may not prohibit a surplus lines broker from placing nonadmitted insurance with, or procuring nonadmitted insurance from, a nonadmitted alien insurer that is listed on the Quarterly Listing of Alien Insurers maintained by the International Insurers Department of the NAIC.

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

Wisconsin may not impose eligibility requirements on, or otherwise establish eligibility criteria for, nonadmitted insurers domiciled in a U.S. jurisdiction, except:

- Wisconsin may require that the insurer be authorized to write the type of insurance in its domiciliary jurisdiction; and
- Wisconsin may require that the insurer have capital and surplus or its equivalent under the laws of its domiciliary jurisdiction which equals the greater of:
 - The minimum capital and surplus requirements under the law of Wisconsin; or
 - \$15 million.

The insurance commissioner may waive the minimum capital and surplus requirements above if the commissioner makes an affirmative finding of acceptability after considering: the quality of its management, capital and surplus of a parent company, the company's underwriting profit and investment trends, market availability, and the company's record and reputation within the industry. The commissioner may not make a finding of acceptability if the insurer's capital and surplus is under \$4.5 million.

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

Wisconsin lists the types of insurance that cannot be written by unlicensed insurers. Such prohibited coverages include title, mortgage guaranty, accident and health, or workers' compensation insurance.

OTHER COMMENTS OR REQUIREMENTS

1. Further information regarding surplus lines insurance in Wisconsin is available at http://oci.wi.gov/pub_list/pi-026.htm.
2. While Wis. Stat. § 618.41 (6)(d) states that the commissioner may issue lists of unauthorized nondomestic insurers (surplus lines carriers) he or she believes to be reliable and solid, the Wisconsin Insurance Commissioner determined that he or she could no longer provide the lists contemplated in Wis. Stat. § 618.41 (6)(d) and would no longer evaluate financial statements submitted to the Commissioner's office for that purpose.
3. Every new or renewal insurance policy procured and delivered in Wisconsin shall bear the name and address of the insurance agent or broker who procured it and shall have stamped or affixed upon it the following: **"This insurance contract is with an insurer which has not obtained a certificate of authority to transact regular insurance business in the state of Wisconsin, and is issued and delivered as a surplus line coverage pursuant to s. 618.41 of the Wisconsin Statutes. Section 618.43(1), Wisconsin Statutes, requires payment by the policyholder of 3% tax on gross premium."**

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